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What is a CBA?

A Community Benefits Agreement (CBA) is a legally-binding contract between a developer and a community coalition (or, in some cases, a municipality) that outlines specific benefits the developer must deliver in exchange for community support or non-opposition to a project (Gross et al., 2005; Salkin & Lavine, 2008; De Barbieri, 2016). These benefits often include commitments such as local hiring, workforce development, environmental mitigation, affordable housing, or infrastructure investments.

CBAs emerged in the late 1990s and early 2000s as communities sought more equitable outcomes from major development projects, especially where residents had historically been excluded from decision-making (Baxamusa, 2008; Belongie & Silverman, 2018). They have since expanded into renewable energy, infrastructure, and utility-scale projects, where concerns about fairness, siting impacts, and trust are especially acute (Mueller & Brooks, 2020; Gunton & Markey, 2021).

What a CBA can do

- Create legally enforceable obligations that communities can monitor and hold developers to (Stephan, 2022).
- Ensure benefits are specific, measurable, and tied to project milestones (Gross et al., 2005).
- Build trust and transparency through structured negotiation and oversight (Brungard & Fraser, 2025).
- Reduce conflict and delays by addressing community concerns early (Baxamusa, 2008).
- Strengthen long-term accountability, especially when agreements include monitoring committees, reporting requirements, and successor clauses (Stephan, 2022; Gross, 2007).

What a CBA cannot do

- Replace meaningful community engagement or fix a broken process retroactively (Susskind et al., 1999).
- Guarantee equitable outcomes if community coalitions lack capacity or representation (De Barbieri, 2016; Been, 2010).
- Function effectively without clear commitments, independent oversight, and ongoing monitoring (Wolf-Powers, 2010; Marcello, 2007).
- Ensure compliance if benefits are vague, unenforceable, or dependent solely on goodwill (Gross, 2007; Clarke, 2016).

Why might you want one?

Communities and municipalities pursue CBAs because they:

1. Create enforceable commitments

CBAs ensure that benefits are not just promises but obligations.

Example: Block Island's CBA included a reimbursement clause that the developer honored years later when cable repairs were needed without litigation (Brungard & Fraser, 2025; Faulkner, 2020).

2. Reduce conflict and delays

Developers often negotiate CBAs to secure local support, avoid opposition, and streamline permitting (Baxamusa, 2008; Wolf-Powers, 2010).

3. Improve equity and procedural justice

CBAs can rebalance power by giving communities a structured role in shaping project outcomes (Mueller & Brooks, 2020; Cascadden et al., 2021).

4. Build long-term relationships and trust

CBAs that include community liaisons, advisory committees, and transparent reporting foster durable collaboration (Brungard & Fraser, 2025; Marcello, 2007).

5. Protect communities from risk

Well-designed CBAs include:

- successor clauses
- performance bonds
- monitoring committees
- dispute-resolution mechanisms (Gross, 2007; Stephan, 2022)

These tools help ensure benefits persist even when ownership changes or projects evolve.

Common community (public) benefit categories

- Childcare
- Community Investment
- Direct Finances
- Education
- Environment & Sustainability
- Affordable housing and other housing commitments
- Landowner Protections/ Benefits
- Local Business
- Local Hiring & Wage Requirements
- Safety
- Specialized/ Project Specific
- Traffic/Transportation
- Wage Requirements
- Waste Collection

Who this dashboard is for

Stretch goal - Role selector (community/government/developer)

This dashboard is designed for community organizers, municipality officials, and local boards who often face development project decisions with limited staff capacity, limited legal expertise, and limited time.

Primary audiences

- Community organizers and EJ advocates
Often working part-time or as volunteers, these users need accessible tools to level the playing field in negotiations and articulate community priorities.
- Municipal officials and staff
Town managers, planners, sustainability coordinators, conservation commissions, selectboards, zoning boards. These users need clear frameworks, templates, and examples to navigate CBA processes efficiently.
- Local government boards
Volunteer boards responsible for decisions affecting land use, permitting, and community well-being.

Secondary audiences

- Developers and project proponents
Seeking to understand community expectations and reduce project risk.
- Consultants and technical advisors
Supporting municipalities or communities in negotiation, engagement, or monitoring.
- Researchers and students
Studying community engagement, energy transitions, or planning processes.

How to use this dashboard

This dashboard is structured as a step-by-step toolkit that guides users through the entire CBA process from early preparation to long-term enforcement.

Use the dashboard to:

- Navigate the CBA process through six modular steps:
Prepare → Engage → Negotiate → Draft → Monitor → Enforce
- Access downloadable templates, worksheets, and checklists.
- Explore case studies that illustrate successful (and unsuccessful) CBAs.
- Learn about state-level requirements, legal basics, and best practices.
- Filter resources by project type, location, or benefit category.
- *Use role-based navigation (community, municipal, developer) to tailor guidance.*

-Use the dropdown step modules to go through the CBA development process, accessing tips, explanations, and downloadable templates and worksheets along the way.

-Scroll down to the resource library to view the complete collection of templates, worksheets, examples, and additional resources in a filterable and searchable collection.

Some state-level legislative updates

This section will eventually include different state requirements, but as a pilot focuses on a Massachusetts setting.

[Link to state documents](#)

Glossary

Glossary

Community Benefits Agreement (CBA)

A legally binding contract between a developer and a community coalition or municipality that outlines specific benefits the developer must deliver (Gross et al., 2005; Salkin & Lavine, 2008).

Community Benefit Plan (CBP)

A non-binding plan required in some federal funding applications (e.g., DOE) that outlines how a project will engage and benefit local communities.

Cumulative Impact Analysis (CIA)

An assessment of cumulative environmental and social burdens required for certain energy infrastructure projects under Massachusetts state law.

Environmental Justice (EJ) Principles

Principles ensuring meaningful involvement and equitable distribution of environmental benefits and burdens regardless of race, income, or other protected characteristics.

Key Stakeholders

Residents, community groups, local officials, EJ communities, tribes, and others within or near the project area who may be affected.

Meaningful Engagement

Early, continuous, accessible, culturally competent engagement that informs decision-making.

Step 1 Module

STEP 1: PREPARE



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STEP 1 — PREPARE

What communities and municipalities should do before any negotiation begins

1. Understand the Project Context & What the Developer Needs

Before you talk about benefits, get clear on what the developer is asking for and when they need it. Developers usually negotiate CBAs because they need something (permits, zoning approvals, subsidies, or community support). That's your leverage.

Things to pin down early:

- What approvals or incentives the project depends on
- The project's likely impacts (jobs, traffic, noise, environmental risks)

Who owns the project now and whether ownership might change

- This matters because benefits can fall apart when projects change hands unless the agreement includes successor clauses
- What this developer has offered in other communities

Understanding the timeline and pressure points helps you negotiate benefits that are real, specific, and tied to actual decision moments. It also helps you avoid vague promises that sound good but don't hold up later.

- ☐ Review the developer's permit applications and zoning requests to identify leverage points
- ☐ Ask for a project timeline and funding source information
- ☐ Research the developer's previous CBAs or community commitments in other towns
- ☐ Document potential impacts (traffic, noise, environment) using local data or reports
- ☐ Confirm ownership structure and future transfer plans to ensure successor clauses will apply

2. Identify Stakeholders & Build a Strong, Representative Team

A CBA is only as strong as the people at the table. The most successful agreements come from broad, inclusive coalitions, not just one group or one neighborhood.

Think about including:

- Local boards (selectboard, planning board, zoning, conservation)
- Municipal staff (planning, public works, community development)
- Residents — homeowners, renters, unhoused residents
- Local businesses
- EJ groups and community-based organizations
- Faith and cultural groups
- Youth and elder advocates
- Public health providers
- Regional planning agencies
- Tribes
- Utilities and infrastructure owners

When coalitions are broad and stable, they negotiate better and enforce better. When coalitions fall apart (like in the **Hunter's Point** case) oversight weakens and benefits slip through the cracks. When coalitions are strong (like on **Block Island**) commitments get delivered even years later.

- ☐ Map stakeholders visually, listing who is affected and who holds decision power
- ☐ Invite representatives from underrepresented groups early
- ☐ Establish clear roles
- ☐ Create a shared contact list and meeting schedule to maintain continuity
- ☐ Draft a coalition agreement outlining decision-making rules and conflict resolution

3. Define Community Priorities Early

Don't start with a list of benefits the developer offers. Start with what your community actually needs.

Use a **priorities worksheet** to identify:

- What problems the project should help solve
- Which benefits matter most (jobs, housing, mitigation, infrastructure, etc.)
- Which benefits require long-term commitments
- Which benefits are essential vs. negotiable
- What success looks like for your community

This step helps you avoid symbolic benefits - commitments that look good on paper but don't address real needs or aren't tied to measurable outcomes.

- ☐ Use surveys or listening sessions to identify top concerns
- ☐ Rank priorities using a scoring matrix (impact, feasibility, urgency)
- ☐ Translate broad goals (jobs) into measurable outcomes (X% local hires within two years)
- ☐ Document essential vs. negotiable benefits
- ☐ Revisit priorities before each negotiation phase to ensure alignment

4. Assess Your Capacity & Identify Support Needs

Communities often walk into negotiations at a disadvantage. Developers have lawyers, consultants, and technical experts. Communities usually don't, and that imbalance can shape the entire agreement.

Use a **readiness checklist** to assess:

- Do we have legal support?
- Do we have someone who understands negotiation strategy?

- Do we have stable organizations that can stay involved long-term?
 - Do we have the capacity to monitor commitments over time?
 - Do we need outside help (legal clinics, EJ offices, technical assistance programs)?
-
- ☐ Contact local universities for pro bono legal or planning assistance
 - ☐ Reach out to state EJ offices for technical help with environmental review
 - ☐ Identify funding for community consultants or translators
 - ☐ Build small advisory group of subject matter experts (law, finance, construction)
 - ☐ Schedule capacity check-ins every few months to adjust resources

5. Bring in a Neutral Facilitator or Mediator

A neutral can:

- Convene all the right people
- Set ground rules
- Help everyone build a shared fact base
- Keep discussions focused and productive
- Prevent power imbalances from derailing negotiations
- Turn broad ideas into clear, written commitments

Agreements reached through facilitated, problem-solving-oriented processes tend to be more durable and easier to enforce. They also build trust which is essential for long-term monitoring and collaboration.

- ☐ Choose someone with experience in land-use or public-sector negotiation
- ☐ Verify neutrality (no ties to the developer)
- ☐ Ask them to draft ground rules and a shared fact-finding plan
- ☐ Use structured agendas and time limits to keep meetings productive
- ☐ Ensure the facilitator documents agreements and distributes summaries soon after meetings

Sources:

Baxamusa (2008)

Wolf-Powers (2010)

Marantz (2015)

De Barbieri (2016)

Cascadden et al. (2021)

Been (2010)

Jacobs (2010)

Citizen Portal (2018)

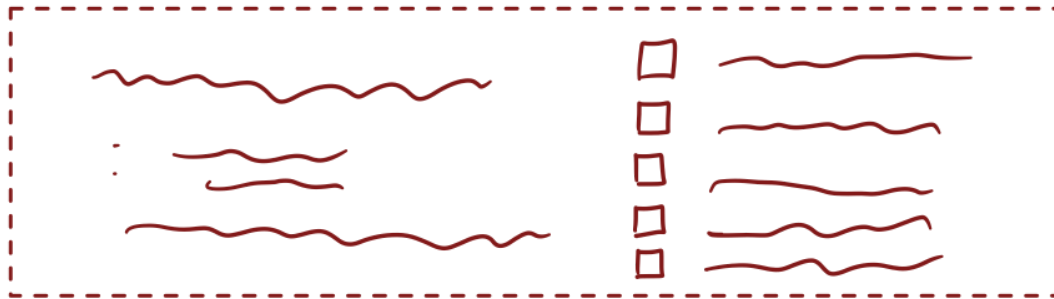
Gross et al. (2005)
Belongie & Silverman (2018)
Musil (2012)
Clarke (2016)
Stephan (2022)
Berglund (2021)
Susskind et al. (1999)
Susskind & Cruikshank (2006)
Bacow & Wheeler (1984)
Holznagel (1991)
McGuire (1986)
Fang (2023)
Brungard & Fraser (2025)
Faulkner (2020)
Civiletti & Nigro (2023)
MassEEA guidance
UMass stakeholder categories

Step 2 Module

STEP 2 : ENGAGE



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STEP 2 — ENGAGE

How to build meaningful, inclusive, and effective community engagement before negotiations begin

Engagement is where trust is built, information is shared, and community priorities start to take shape. Engagement must be early, ongoing, accessible, and culturally competent, not a one-off meeting or a box-checking exercise.

This module helps communities and municipalities design engagement processes that are fair, transparent, and capable of shaping real CBA commitments.

1. Start Engagement Early and Make It Continuous

Communities need to be involved before major decisions are made, not after the project is already designed. Early engagement gives residents a real chance to influence site selection, project design, mitigation measures, and benefit priorities.

What early engagement looks like:

- Sharing project information as soon as it's available
 - Hosting conversations before permit filings
 - Keeping communication open through construction and operations
 - Providing updates in plain language and multiple formats
-
- ☐ Begin outreach ideally at least two months before permit submission
 - ☐ Maintain updates through newsletters or a project webpage
 - ☐ Host quarterly community briefings during construction and operation

2. Make Engagement Inclusive and Accessible

People most affected by a project are often the least likely to be at the table. Engagement must be designed to reach them.

This means:

- Holding meetings at accessible, familiar locations
- Scheduling at times that work for working families
- Providing childcare, food, transportation, or stipends when possible
- Offering interpretation and translation
- Using multiple outreach channels (in-person, online, surveys, pop-ups, local media)
- Partnering with trusted community organizations to reach underrepresented groups

Cultural relevance is essential and meaningful participation requires removing structural barriers and meeting people where they are.

- ☐ Consider providing childcare and food at meetings
- ☐ Offer interpretation in languages spoken locally
- ☐ Use multiple formats (in-person, virtual, pop-up)
- ☐ Partner with trusted local organizations to co-host sessions

3. Map the Community and Identify Who Needs to Be at the Table

Engagement starts with understanding who is affected and who has been historically excluded.

Groups to consider:

- Residents (owners, renters, unhoused residents)
- EJ communities
- Neighborhood associations
- Faith-based and cultural groups
- Youth and elder advocates
- Local businesses
- Public health providers
- Environmental organizations
- Workforce development groups and unions
- Tribes
- Municipal boards and staff
- Regional planning agencies

This step helps avoid representational problems where coalitions don't reflect the full community and legitimacy suffers.

- ☐ Create a stakeholder map showing influence and impact
- ☐ Use demographic data to ensure EJ community representation

4. Create a Clear, Transparent Engagement Plan

A strong **engagement plan** sets expectations and builds trust. It should explain:

- Goals of engagement
- Outreach strategies (who you're trying to reach and how)
- Timeline and milestones
- Language access and accessibility supports
- How input will be collected
- How decisions will be made
- How feedback will be used
- How results will be shared back to the community

Transparency is critical. When decision-making processes are unclear, trust erodes and enforcement becomes harder.

- ☐ Publish the plan online and in print
- ☐ Include a timeline of engagement milestones
- ☐ Define how feedback will be incorporate into project design
- ☐ Assign responsibility for follow-up communication

5. Document What You Hear and Show How It Shapes the Project

Communities need to see that their input matters. This means:

- Tracking all comments and concerns
- Identifying recurring themes
- Showing how feedback influenced project design, mitigation, or benefit priorities
- Publishing summaries in accessible formats
- Closing the loop with residents

This step is essential for legitimacy. In cases like **Calverton**, clear documentation helped the town enforce commitments. In cases like **Hunter's Point**, lack of transparency contributed to oversight failures.

- ☐ Use a comment-tracking spreadsheet (theme, response, action taken)
- ☐ Summarize findings in plain-language reports
- ☐ Present examples to demonstrate responsiveness (You said, We did)
- ☐ Archive all materials for future monitoring

Sources:

MassEEA guidance

Baxamusa (2008)

Cascadden et al. (2021)

Been (2010)

De Barbieri (2016)

Jacobs (2010)

Citizen Portal (2018)

Brungard & Fraser (2025)

Faulkner (2020)

Civiletti & Nigro (2023)

Susskind et al. (1999)

Susskind & Cruikshank (2006)

Step 3 Module

STEP 3: NEGOTIATE



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STEP 3 — NEGOTIATE

Designing a fair, transparent, and enforceable negotiation process

Negotiation is where commitments take shape and where the long-term enforceability of a CBA is largely determined. Equitable enforcement begins with equitable negotiation (Susskind et al., 1999; Baxamusa, 2008; Gross, 2007). This module provides practical tools to help communities and municipalities negotiate CBAs that are specific, durable, and implementable.

1. Sample Negotiation Timelines

Negotiations vary by project type, permitting structure, and coalition capacity, but successful CBAs tend to follow a predictable sequence. The timeline below synthesizes patterns from documented cases (e.g., Block Island, Calverton, Detroit) and consensus-building literature.

Phase 1 — Pre-Negotiation (2–6 weeks)

- Coalition alignment and mandate setting
- Identification of negotiators and advisors
- Agreement on ground rules and decision-making procedures
- Joint fact-finding plan

Phase 2 — Issue Identification (2–8 weeks)

- Stakeholder presentations
- Community priorities surfaced and ranked
- Developer constraints clarified
- Agreement on scope of benefits

Phase 3 — Option Development (4–12 weeks)

- Brainstorming benefit options
- Technical vetting (costs, feasibility, timelines)
- Iterative drafting using a single negotiating text (Susskind et al., 1999)

Phase 4 — Drafting & Closure (2–6 weeks)

- Converting commitments into enforceable language
- Adding monitoring, reporting, and dispute-resolution provisions
- Legal review
- Coalition or municipal ratification

Phase 5 — Implementation Planning (1–4 weeks)

- Establishing committees or liaisons
 - Setting reporting schedules
 - Clarifying roles and responsibilities
-
- ☐ Include estimated durations for each phase and responsible parties
 - ☐ Use shared calendars to track deadlines
 - ☐ Schedule debriefs after each phase to review progress

2. Guidance on Neutral Facilitation

Neutral facilitation is one of the strongest predictors of enforceable agreements.

Why a neutral matters

- Levels the playing field when communities lack legal or technical capacity (Baxamusa, 2008; Clarke, 2016)
- Ensures balanced participation and prevents domination by developers or political actors (Susskind et al., 1999)
- Supports joint fact-finding, reducing disputes over data (Susskind & Cruikshank, 2006)
- Helps translate broad commitments into implementable terms (Bacow & Wheeler, 1984)

What a neutral facilitator does

- Convenes all relevant stakeholders
- Establishes transparent ground rules
- Manages the agenda and ensures balanced participation
- Uses a single negotiating text to move parties toward closure
- Helps parties articulate interests rather than positions

When to bring in a neutral

- When power disparities are significant
 - When trust is low
 - When technical issues require joint fact-finding
 - When negotiations stall or become adversarial
-
- ☐ Facilitators should prepare joint fact-finding summaries before each meeting
 - ☐ Use consensus-building techniques like interest-based negotiation and single-text drafting
 - ☐ Consider rotating meeting chairs to balance participation

3. Meeting Facilitation Guides

Effective meetings prevent drift, confusion, and domination by a single party. A facilitation guide for CBA negotiations should include:

Before the meeting

- Circulate agenda, ground rules, and technical materials
- Confirm who is empowered to make decisions
- Identify desired outcomes for the session

During the meeting

- Begin with a check-in and restatement of ground rules
- Use structured rounds to ensure all voices are heard
- Track issues on a shared screen or flip chart

- Separate brainstorming from evaluation
- Summarize agreements at the end of each segment

After the meeting

- Distribute a written summary within 48 hours
 - Identify next steps, responsible parties, and deadlines
 - Update the single negotiating text
- ☐ Begin with a brief recap of previous agreements
 - ☐ Use visual aids to track issues
 - ☐ End each meeting with a written summary and next-step assignments

4. Negotiation Preparation Worksheet

A preparation worksheet helps communities and municipalities enter negotiations with clarity and leverage. It should include:

A. Interests and Priorities

- What does the community need most?
- Which benefits are essential vs. negotiable?
- What long-term impacts must be mitigated?

B. Constraints and Opportunities

- What leverage does the community or municipality have (permits, political support, public opinion)?
- What constraints does the developer face (timelines, financing, regulatory requirements)?

C. Information Needs

- What data is missing?
- What technical expertise is required?
- What joint fact-finding questions should be proposed?

D. Draft Benefit Concepts

- Preliminary ideas for benefits
- Potential implementation partners
- Estimated costs and feasibility

E. Enforcement Preferences

- Preferred monitoring structures

- Dispute-resolution mechanisms
 - Successor clauses, reporting schedules, penalties
- ☐ What data is missing? Could include traffic counts, wage benchmarks, emissions
 - ☐ Specify enforcement penalties and reporting intervals
 - ☐ Receive coalition sign-off before entering formal talks

5. Understanding Power Dynamics

Power imbalances shape every stage of negotiation. The literature identifies several recurring dynamics:

Developer advantages

- Greater financial and legal resources (Musil, 2012; Clarke, 2016)
- Control over project timelines and technical information
- Ability to wait out community coalitions

Community disadvantages

- Limited legal capacity
- Volunteer-based participation
- Organizational instability (e.g., ACORN dissolution at Hunter's Point)

Municipal leverage

- Permitting authority
- Ability to condition approvals (Calverton)
- Political accountability to residents

Strategies to rebalance power

- Use of neutral facilitation
 - Joint fact-finding to reduce information asymmetry
 - Broad, inclusive coalitions to increase legitimacy (Baxamusa, 2008)
 - Clear ratification procedures
 - Early agreement on ground rules and decision-making
 - Securing technical assistance or pro bono legal support
- ☐ Counter developer advantages by pooling community resources and publicizing shared goals
 - ☐ Use media coverage strategically to maintain transparency
 - ☐ Document all offers and counter-offers to prevent misrepresentation

Sources:

Baxamusa (2008)

Bacow & Wheeler (1984)

Susskind et al. (1999)

Susskind & Cruikshank (2006)

Gross (2007)

Clarke (2016)

Stephan (2022)

Cascadden et al. (2021)

Marantz (2015)

Jacobs (2010)

Citizen Portal (2018)

Farley (2023)

Berglund (2021)

Step 4 Module

STEP 4 : DRAFT



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STEP 4 — DRAFT

Translate negotiated commitments into clear, enforceable, durable language

Drafting is where a CBA becomes real. Even strong negotiations can collapse into weak enforcement if commitments are vague, unenforceable, or poorly structured. Specificity, clarity, and enforceability at the drafting stage determine whether benefits materialize (Gross 2007; Stephan 2022; Marantz 2015).

This module provides a structure, example benefit menus, model clauses, an enforceability checklist, and common pitfalls to avoid.

1. CBA Structure Template

A. Preamble / Purpose

1. Identifies the project, parties, and shared goals
2. States the intent to deliver community benefits and establish accountability

B. Definitions

- Defines key terms (e.g., “local hire,” “living wage,” “monitoring committee,” “successor”)
- Prevents ambiguity and future disputes

C. Benefit Commitments

Organized by category (e.g., workforce, environment, community investment).

Each benefit includes:

- Specific deliverable
- Timeline
- Responsible party
- Reporting requirements

D. Implementation & Monitoring

- Establishes committee or liaison
- Sets reporting schedule
- Outlines data access and transparency

E. Dispute Resolution

- Notice and cure
- Mediation
- Binding arbitration (if applicable)

F. Enforcement

- Legal enforceability
- Financial penalties or performance bonds
- Successor/assigns clause

G. Term, Amendments, and Termination

- Duration of commitments
- Process for amendments
- Conditions for termination

H. Signatures

- Developer
 - Community coalition and/or municipality
 - Additional signatories (if any)
- ☐ Use consistent numbering and defined terms throughout
 - ☐ Include appendices for data reporting formats
 - ☐ Require signatures from all parties and witnesses

2. Menu of Example Benefits

Workforce & Economic

- Local hiring requirements
- Living wage or prevailing wage standards
- Apprenticeship or job-training programs
- Minority- and women-owned business participation

Environmental & Mitigation

- Noise, dust, or air-quality mitigation
- Green space creation
- Stormwater improvements
- Agricultural or habitat protections

Community Investment

- Community investment funds
- Cultural or historical preservation
- Community centers, parks, or recreational facilities
- Public art or placemaking initiatives

Education

- Scholarships
- STEM or vocational training partnerships
- School facility improvements

Direct Financial Benefits

- Lump-sum payments
- Annual payments tied to project operation
- Host community agreements (common in RE)

Housing

- Affordable housing units
- Housing trust fund contributions
- Anti-displacement measures

Project-Specific / Localized

- Traffic mitigation
 - Parking access
 - Fishery assistance (e.g., South Fork Wind)
 - Landowner protections
- ☐ Local hiring ex: 30% of construction jobs for residents within 10 miles
 - ☐ Environmental mitigation ex: Install air-quality monitors and publish quarterly data
 - ☐ Community investment ex: \$250,000 annual fund administered by a local nonprofit
 - ☐ Housing ex: 10% of units reserved for households earning below 60% AMI

3. Model Clauses (Benefits, Reporting, Enforcement)

These are generic clause structures, not legal text.

A. Benefit Delivery Clause

The Developer shall provide [specific benefit] by [date], in coordination with [partner], and shall submit documentation of completion to the Monitoring Committee within [X] days.

- Specifies deliverable, timeline, responsible party, and reporting

B. Reporting Clause

The Developer shall submit quarterly reports detailing progress toward each commitment, including metrics, expenditures, and any delays, to the Monitoring Committee and make such reports publicly accessible.

- Similar to reporting structures in Block Island, Calverton, NECEC, and many RE CBAs

C. Monitoring Committee Clause

A Monitoring Committee composed of [parties] shall meet at least [frequency] to review compliance, request documentation, and issue findings.

D. Notice and Cure Clause

If any party identifies non-compliance, it shall issue written notice. The Developer shall have [X] days to cure the breach before escalation to mediation or arbitration.

E. Enforcement Clause

This Agreement is enforceable in court. Remedies include specific performance, injunctive relief, and financial penalties as outlined in Section [X].

F. Successor Clause

All obligations under this Agreement shall bind successors for the duration of the project.

- ☐ Include deadlines and documentation requirements in each clause
- ☐ Specify who verifies completion (committee, agency, third party)
- ☐ Ensure dispute-resolution timelines are realistic (30-60 days)

4. Checklist for Enforceability

Clarity & Specificity

- [] Each benefit is measurable
- [] Timelines are explicit
- [] Responsible parties are named
- [] Deliverables are tied to reporting

Monitoring & Oversight

- [] Monitoring committee or liaison established
- [] Reporting schedule defined
- [] Data access guaranteed
- [] Public transparency mechanisms included

Dispute Resolution

- [] Notice and cure process
- [] Mediation or arbitration option
- [] Clear escalation pathway

Legal Enforceability

- [] Agreement enforceable in court
- [] Financial penalties or performance bond
- [] Successor/assigns clause

Durability

- [] Term of agreement defined
 - [] Amendment process specified
 - [] Provisions survive ownership changes
-
- ☐ Review checklist jointly with legal counsel before signing
 - ☐ Store signed copies with the municipality and/or coalition
 - ☐ Schedule annual reviews to confirm ongoing compliance

5. Common Drafting Mistakes

- Vague or aspirational language

- “Developer will *seek to* hire locally”
- “Parties will *work together* to explore options”

- Missing timelines

- Benefits without deadlines rarely materialize.

- No monitoring structure

- Without a committee or liaison, reporting collapses.

- No successor clause

- A major failure point in long-term projects (Stephan 2022).

- Overreliance on goodwill

- If enforcement depends on relationships rather than structure, benefits erode when leadership changes.

- Overly complex benefit packages

- Complexity without clear reporting makes accountability impossible.

- No amendment procedure

- Projects evolve; without a process, commitments drift (e.g., Warm Springs/South Fremont).
- ☐ Conduct a “plain-language audit” to remove ambiguous terms
 - ☐ Cross-reference all benefits with monitoring sections to ensure coverage
 - ☐ Include amendment procedures to adapt to project changes

Sources:

Baxamusa (2008)
Bacow & Wheeler (1984)
Susskind et al. (1999)
Susskind & Cruikshank (2006)
Gross (2007)
Clarke (2016)
Stephan (2022)
Cascadden et al. (2021)
Marantz (2015)
Jacobs (2010)
Citizen Portal (2018)
Farley (2023)
Berglund (2021)

Step 5 Module

STEP 5 : MONITOR



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STEP 5 — MONITOR

Ensure commitments are implemented, tracked, and publicly accountable

Monitoring is the backbone of enforcement. Even well-drafted CBAs fail when oversight is weak, reporting is inconsistent, or committees dissolve over time. Durable monitoring structures, transparent reporting, and clear authority are what distinguish successful cases (Block Island, Calverton) from failures (Hunters Point).

This module provides frameworks, committee structures, and a reporting template to support long-term accountability.

1. Monitoring Frameworks

Monitoring frameworks vary across CBAs, but the strongest ones share four core components: clear responsibilities, regular reporting, transparent review, and escalation pathways.

A. Developer Self-Reporting (most common)

Developers submit periodic reports (quarterly or semi-annual) detailing progress on each commitment.

Strengths: simple, low-cost

Risks: selective reporting; limited verification

B. Joint Monitoring Committee (highly effective)

A committee of community, developer, and sometimes municipal representatives reviews reports, requests documentation, and issues findings.

Strengths: shared oversight, transparency, legitimacy

Risks: requires sustained participation and capacity

C. Third-Party or Independent Monitoring

An external consultant or nonprofit verifies compliance.

Strengths: independence, technical expertise

Risks: cost, requires funding mechanism

D. Public Agency Monitoring (common in RE + infrastructure)

Municipal or state agencies incorporate CBA commitments into permitting or compliance processes (e.g., [Calverton](#)).

Strengths: regulatory authority

Risks: political turnover; shifting priorities

E. Hybrid Models (increasingly common)

Combines self-reporting, committee oversight, and public agency review.

Strengths: redundancy; resilience to turnover

Risks: coordination complexity

- ☐ Developer self-reporting ex: Quarterly progress reports with metrics and photos
- ☐ Joint committee ex: Meet bi-monthly, publish minutes online
- ☐ Independent monitoring ex: Hire a consultant for annual compliance audits
- ☐ Hybrid model ex: Combine community review with independent oversight

2. Monitoring Committee Structure

Monitoring committees are one of the strongest predictors of successful enforcement (Gross 2007; Baxamusa 2008; Clarke 2016).

A. Composition

- Community representatives (2–5)
- Developer representatives (1–2)
- Municipal staff (optional but helpful)
- Independent expert (optional; e.g., environmental, workforce, or legal)

B. Roles

- Chair or rotating facilitator
- Secretary/record-keeper
- Data reviewer (can be an expert or staff)
- Liaison to the public (handles transparency and communication)

C. Responsibilities

- Review quarterly or semi-annual reports
- Request documentation or site visits
- Track progress against timelines
- Issue findings or compliance summaries
- Recommend corrective actions
- Maintain public transparency (website, dashboard, or annual report)

D. Meeting Frequency

- Quarterly during construction
- Semi-annual or annual during operations
- Ad hoc if non-compliance is identified

E. Authority

Committees should have the power to:

- Request information
- Trigger notice-and-cure processes
- Refer disputes to mediation or arbitration
- Publish compliance findings

Committees without authority tend to dissolve or become symbolic (Hunters Point)

- ☐ Include ideally-equal representation from community, developer, and municipality
- ☐ Choose a chair and secretary for record-keeping

- ☐ Define quorum and voting procedures
- ☐ Establish a public comment period for each meeting

3. Reporting Form Template

A simple, standardized reporting form increases transparency and reduces disputes.

CBA Reporting Form (Template)

Project Name:

Developer:

Reporting Period:

Date Submitted:

Section 1 — Summary of Progress

- Overview of activities this period
- Key milestones achieved
- Any delays or changes

Section 2 — Benefit Delivery Status

For each commitment:

Benefit	Deliverable	Deadline	Status (On Track / Delayed / Complete)	Evidence Provided	Notes

Section 3 — Workforce & Hiring (if applicable)

- Local hires this period
- Total local hires to date
- Training/apprenticeship participation
- Wage compliance summary

Section 4 — Environmental & Mitigation Measures

- Mitigation actions completed
- Monitoring data (e.g., noise, dust, water)
- Compliance with environmental commitments

Section 5 — Financial Commitments

- Payments made (amount, date, recipient)
- Payments scheduled
- Documentation attached

Section 6 — Community Investments

- Programs funded
- Facilities improved
- Partnerships initiated

Section 7 — Issues, Delays, or Non-Compliance

- Description of issue
- Reason for delay
- Proposed corrective action
- Expected timeline for resolution

Section 8 — Attachments

- Invoices
- Photos
- Data tables
- Third-party verification
- Meeting minutes

- ☐ Require supporting documentation (receipts, photos, permits) for reported information
- ☐ Publish reports on municipal or coalition websites

Sources

Baxamusa (2008)

Gross (2007)

Clarke (2016)

Stephan (2022)

Cascadden et al. (2021)

Marantz (2015)

Jacobs (2010)

Citizen Portal (2018)

Farley (2023)

Berglund (2021)

Block Island case

Calverton case

NECEC case

Step 6 Module

STEP 6: ENFORCE



1.  (click to expand)



2. 

3. 

4. 

5. 

(expand similarly)

STEP 6 — ENFORCE

Activate the tools that ensure commitments are delivered and know when to escalate

Enforcement is not a single action but a sequence of pathways that escalate only when needed. Most successful enforcement happens long before litigation (Stephan 2022; Gross 2007). Strong monitoring, clear reporting, and structured dispute-resolution processes resolve most issues.

This module outlines enforcement pathways, real examples, and guidance on when to seek legal support.

1. Enforcement Pathways

Enforcement typically follows a four-stage escalation pathway, moving from collaborative problem-solving to formal remedies only when necessary.

A. Informal Resolution (first step in most CBAs)

Triggered when:

- A report shows a missed deadline
- A committee identifies incomplete documentation
- A community member flags an issue

Tools:

- Direct communication
- Clarification of expectations
- Adjusted timelines (if allowed)

Most issues are administrative, not adversarial.

B. Notice and Cure (formal but non-adversarial)

Process:

1. Monitoring committee or party issues written notice of non-compliance
 2. Developer has a defined period (e.g., 30–90 days) to “cure” the breach
 3. Committee verifies completion
- Creates a paper trail
 - Gives developers a fair chance to fix issues
 - Avoids escalation

C. Mediation or Arbitration (structured dispute resolution)

Used when:

- Cure period expires
- Parties disagree on whether compliance occurred
- Technical disputes arise (e.g., environmental data)
- Neutral facilitation reduces conflict

- Faster and cheaper than litigation
- Keeps relationships intact

D. Legal Enforcement (last resort)

Available when:

- The CBA is a legally binding contract
- All other pathways fail
- Harm is significant or ongoing

Legal remedies may include:

- Specific performance
 - Injunctive relief
 - Financial penalties
 - Enforcement of performance bonds
- ☐ Track every enforcement step in a shared log so progress and outcomes are visible to all parties
 - ☐ Use a standard Notice and Cure form to document issues and deadlines clearly
 - ☐ Set calendar reminders for cure periods and mediation dates to avoid missed follow-ups
 - ☐ Keep all correspondence in one folder for quick reference if escalation becomes necessary
 - ☐ Confirm who has authority to initiate each stage before enforcement begins

2. Examples of Successful Enforcement

A. Block Island Wind Farm (Rhode Island)

Mechanisms used:

- Clear reimbursement clause
- Full-time community liaison
- Strong reporting and communication

Outcome: When seabed erosion exposed the transmission cable, the developer invoked the reimbursement clause and paid for repairs immediately, without litigation.

Why it succeeded: Specificity + trust + clear contractual language.

B. Calverton Solar Energy Center (New York)

Mechanisms used:

- CBA embedded in municipal approval process
- Town withheld certificate of occupancy

Outcome: Developer completed landscaping and payments to receive final permits.

Why it succeeded: Municipal leverage + regulatory enforcement.

C. Detroit Community Benefits Ordinance (Michigan)

Mechanisms used:

- City authority to impose penalties
- Public reporting requirements

Outcome: Multiple projects corrected non-compliance after public reporting and administrative pressure.

Why it succeeded: Institutionalized enforcement + political accountability.

D. NECEC (Maine)

Mechanisms used:

- Third-party fund administration
- Clear payment schedules

Outcome: Benefits continued even as the project faced legal and political challenges.

Why it succeeded: Independent administration insulated benefits from project volatility.

E. Hunters Point Shipyard (San Francisco) — a cautionary example

Mechanisms missing:

- Stable oversight body
- Independent authority
- Long-term community capacity

Outcome: Oversight collapsed after ACORN dissolved; enforcement weakened.

Lesson: Monitoring bodies must be durable and independent.

- ☐ Review these case examples and those in the resource library to identify which enforcement tools fit your project
- ☐ Note which mechanisms worked best and adapt them locally
- ☐ Use cautionary examples to strengthen your monitoring structure before problems arise

3. When to Seek Legal Support

Legal support is not only for litigation. It is often most valuable early, when issues are still fixable.

Seek legal support when:

- A developer repeatedly misses reporting deadlines
- Notice-and-cure periods expire without resolution
- The developer disputes the meaning of a clause
- Ownership changes and successor obligations are unclear
- A monitoring committee needs help interpreting data
- A municipality is unsure how to enforce a condition
- A community coalition lacks capacity to evaluate compliance
- A project enters bankruptcy, restructuring, or sale

Seek immediate legal support when:

- A developer refuses to comply
 - A benefit is at risk of disappearing (e.g., payment, mitigation measure)
 - Environmental or health harms are occurring
 - A developer challenges the CBA's enforceability
-
- ☐ Contact a legal clinic or municipal attorney as soon as repeated non-compliance occurs
 - ☐ Gather all relevant documentation before meeting with counsel
 - ☐ Ask legal advisors to confirm successor obligations and enforcement options annually

4. Links to Legal Support Resources

Community-Facing Legal Support

Community Lawyering Clinics (various universities)

- Many law schools offer free or low-cost support for community coalitions

Local Legal Aid Organizations

- Often assist with contract interpretation and administrative enforcement

Environmental Justice Clinics

- (e.g., Vermont Law School, UCLA, Berkeley) support EJ-related CBA issues

Municipal-Facing Legal Support

- ICLEI USA: guidance on climate-related agreements
- Urban Sustainability Directors Network (USDN): peer support + templates
- National League of Cities (NLC): municipal legal resources
- American Planning Association (APA): guidance on development agreements

Renewable-Energy-Specific

- Energy Justice Network: community support for energy project agreements
 - Institute for Local Self-Reliance (ILSR): technical + policy support
 - State consumer advocate offices: often review utility-scale project agreements
- ☐ Reach out to listed organizations for guidance specific to your project type or jurisdiction
 - ☐ Keep contact details and service descriptions updated in a shared resource library
 - ☐ Bookmark municipal and renewable-energy resources for quick access during enforcement
 - ☐ Use peer networks like USDN and NLC to learn how other communities have resolved similar issues

Sources:

Stephan (2022)
 Gross (2007)
 Baxamusa (2008)
 Clarke (2016)
 Marantz (2015)
 Cascadden et al. (2021)
 Jacobs (2010)
 Citizen Portal (2018)
 Farley (2023)
 Berglund (2021)
 Block Island case
 Calverton case
 Detroit CBO
 NECEC case
 Hunters Point case

Resource Library

1. Resource library/appendix: filter, search, sort
 - a. Full list of templates
 - b. Links to other external resources
 - c. All case studies
 - d. Filters: project type, location, status, etc.

Case Studies:

Our own from paper

https://www.law.berkeley.edu/wp-content/uploads/2024/06/Offshore-Wind-CBAs-in-CA_Final.pdf

<https://cdn.catf.us/wp-content/uploads/2023/11/30172616/community-benefits-agreements-case-studies-federal-guidelines-best-practices.pdf>

<https://climate.law.columbia.edu/content/community-benefits-agreements-database>

<https://www.wri.org/research/detroits-community-benefits-ordinance-lessons-learned-about-community-engagement-process>

Additional external resources:

emeraldcities.org/wp-content/uploads/2024/04/J40-Playbook-Ch-9.pdf

["Expert Insights on Best Practices for Community Benefits Agreements" by Matthew Eisenson and Romany M. Webb](#)

[Project Agreements Can Drive Public Buy-in for Clean Energy | World Resources Institute](#)

[State Legislative Requirements for Community Benefits Agreements in Renewable Energy Projects - Initiative for Energy Justice](#)

[Community Benefits Tools & California Clean Energy Projects](#)

[Responsible Development \(With Community Benefits\) - ReImagine Appalachia](#)

[Issue Reader-Community Benefits in Southwestern Pennsylvania](#)

[Community Benefits — Fair Shake Environmental Legal Services](#)

[Advocacy Tools for Protecting Public Health Resources – Dismantling Injustice](#)

[Common Challenges in Negotiating Community Benefits Agreements](#)

[Delivering Community Benefits Through Economic Development](#)

[Community Benefits: Practical Tools for Proactive Development](#)

<https://www.law.berkeley.edu/wp-content/uploads/2024/07/BOEM-CBA-Timeline.png>

<https://windexchange.energy.gov/community-benefits-guide>

Draft outline

Suggestion for dashboard structure + content

1. Home/landing page
 - a. What is a CBA + Why might you want one (what a CBA can and cannot do)?
 - b. Who this dashboard is for
 - c. How to use this dashboard
 - d. Glossary
 - e. Common community (public) benefit categories

Some state-level legislative updates

2. Step modules: slightly different content depending on role selected
 - a. Prepare
 - i. Understand project context
 - ii. Stakeholder identification
 - iii. Community priorities worksheet
 - iv. Case study examples from spectrum of capacity
 - v. Community readiness checklist and capacity self-assessment template
 - vi. Understanding developer incentives
 - vii. Understanding project timeline
 - viii. Legal basics of CBAs
 - ix. Capacity-building programs - advertise existing one for communities, tell government to develop them
 - b. Engage
 - i. Community engagement guidance
 - ii. State-level requirements
 - iii. Sample outreach plans
 - iv. Embedded examples
 - v. Engagement pitfalls to avoid
 - c. Negotiate
 - i. Sample negotiation timelines
 - ii. Guidance on neutral facilitation
 - iii. Meeting facilitation guides
 - iv. Negotiation preparation worksheet
 - v. Understanding power dynamics
 - d. Draft
 - i. CBA structure template
 - ii. Menu of example benefits
 - iii. Model clauses (benefits, reporting, enforcement)
 - iv. Checklist for enforceability
 - v. Common drafting mistakes
 - e. Monitor
 - i. Monitoring frameworks

- ii. Monitoring committee structure
 - iii. Reporting form template
- f. Enforce
 - i. Enforcement pathways
 - ii. Examples of successful enforcement
 - iii. When to seek legal support + links to legal support resources
- 3. Resource library/appendix: filter, search, sort
 - a. Full list of templates
 - b. Links to other external resources
 - c. All case studies
 - d. Filters: project type, location, status, etc.
- 4. Help and feedback options
- 5. Credit and thank yous

Notes contributing to above suggestions

CBA sources takeaways

-audience: primarily government, developer, secondarily community organizers + academics

→ we should focus on community side (especially with accessible language)

-purpose: guidelines, framework, explanations one resource hub

→ we could focus on more of an action toolkit - resource hub more structured through guidelines

-structure: policy report, modular landing page, legal appendix, guideline document

→ majority pdf documents, we could have a more interactive structure that still provides more structure than just modular landing page

-features: mostly just pdfs, with some clickable links to external resources, one with dropdown modules

→ we could have landing page with structure, any pdfs hosted immediately in dropdowns rather than opening externally

Proposed

Audience: primarily community organizers, with pieces for government, developers, academics

Purpose: provide steps for negotiation of CBAs that can be successfully monitored and enforced (based on paper takeaways) - provide resources (templates, case study examples) at each step and link the process together

Structure: Web-hosted interactive site, with framework and embedded resources within each step

Features: context/definitions, how to use this toolkit, filtering depending on positionality, embedded dropdown case studies, downloadable templates, feedback area

Non-CBA sources takeaways

-features/structures that could be helpful

- Additional information is embedded, not external (Minneapolis)
- Help + feedback buttons
- Filtering, sorting, searching
- Downloadable materials (templates, worksheets, spreadsheets)
- Start - type selector
- Appendix or resource library for additional external links

Content to include from paper:

- State-level framework legislation - state government is audience
- Capacity building programs - government is audience, community organizers could be connected to existing programs
- Monitoring frameworks - state government as suggested creator is audience, or could provide our own
- Central repository of CBAs and reporting documents - government as host is audience, or could provide our own
- Support for neutral facilitation - government is audience for mandating or funding, we can suggest it though

Share screen for interviews

1. Home/landing page

- a. What is a CBA + Why might you want one
 - i. What a CBA can and cannot do - Common community (public) benefit categories
- b. Who this dashboard is for - community organizers, municipalities, developers
- c. How to use this dashboard
- d. Glossary
- e. State-level updates/regulations

2. Step modules:

a. Prepare

- i. Stakeholder identification
- ii. Community priorities worksheet
- iii. Community readiness checklist
- iv. Understanding developer incentives
- v. Understanding project timeline
- vi. Legal basics of CBAs
- vii. Seek neutral facilitation or mediation assistance - provide some state-specific help/resources

b. Engage

- i. Community engagement guidance
- ii. State-level requirements
- iii. Sample outreach plans
- iv. Embedded examples
- v. Engagement pitfalls to avoid

c. Negotiate

- i. Sample negotiation timelines
- ii. Guidance on neutral facilitation
- iii. Meeting facilitation guides
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- ii. Menu of example benefits
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- iv. Checklist for enforceability

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- i. Monitoring frameworks
- ii. Monitoring committee structure
- iii. Reporting form template

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- a. Full list of templates included in steps
- b. Links to other external resources
- c. All case studies included in steps
- d. Filters: project type, location, status, etc.

4. Help and feedback options

5. Credit and thank yous

Inspirational Websites:

- <https://www.nlr.gov/state-local-tribal/community-solar>
- <https://masscybercenter.org/cyber-resilient-massachusetts/minimum-baseline-cybersecurity-municipalities>
- <https://mitrenewableenergy.wixsite.com/website-1>

Visual ideas

TITLE

Mission Statement

What is a CBA, why might you want one?

common benefits
table

Who are
we

Who are
you (audience)

how to
use

state-level
updates

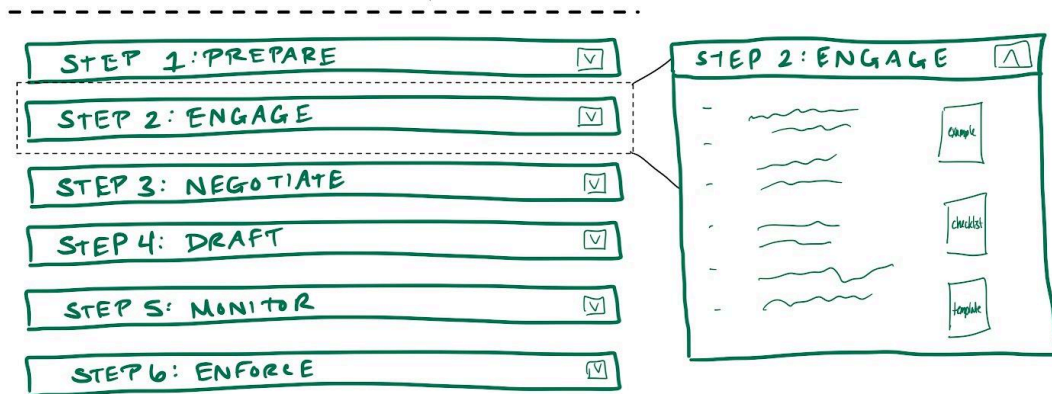
glossary

sources



SCROLL DOWN TO
STEP MODULES

Stay on same page
but top info section fades



SCROLL DOWN TO
RESOURCE LIBRARY

Stay on same page
but step module section fades

RESOURCE LIBRARY

- search

- filters



examples



templates



external
resource links

HELP

FEEDBACK

ACKNOWLEDGEMENTS